



POLICE DEPARTMENT

November 8, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Nelida Flores
Tax Registry No. 901552
6 Precinct
Disciplinary Case No. 86164/10

The above-named member of the Department appeared before me on October 12, 2010, charged with the following:

1. Police Officer Nelida Flores, assigned to the 6th precinct, on or about April 11, 2009, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer added additional information to a Supporting Deposition after the deponent already signed the Supporting Deposition.

P.G. 203-10, Page 1, Paragraph 4 – PUBLIC CONTACT-PROHIBITED CONDUCT
GENERAL REGULATIONS

2. Police Officer Nelida Flores, assigned to the 6th precinct, on or about April 11, 2009, failed to make entries in her Activity Log, as required. (*As amended*)

P.G. Interim Order #7, Page 2, Paragraph 6 REVISION TO PATROL GUIDE
PROCEDURES 206-03,
“VIOLATIONS SUBJECT TO
COMMAND DISCIPLINE”

The Department was represented by Scott Rosenberg, Esq., Department Advocate's Office, and the Respondent was represented by Stuart London, Esq.

The Respondent, through her counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the

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mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent entered a plea of Guilty to both specifications in this case and then offered testimony in mitigation. She testified that she graduated from the Police Academy in January 1993 and she has been a police officer for about 18 years. After the Police Academy, she was assigned to the Sixth Precinct, where she remains to this day. She has made about 150 arrests in her career.¹

On April 11, 2009, the Respondent was working a tour of 1500 by 2323 hours in uniform. She was assigned as the telephone switchboard operator, answering the phones. At some point in time, Sergeant Santos came into the command with a shoplifting arrest he had made at a store, DSW Shoe Warehouse. He said that he needed someone to take the arrest, "which was a holding one." The Respondent indicated that she realized that she would have to take that arrest.

The Respondent did not discuss the facts of the case with Santos because he left right away after giving her the supporting deposition and paperwork. The Respondent explained that the arrestee (██████) was supposed to get a Desk Appearance Ticket (DAT) but she did not qualify.

¹ According to Departmental records the actual number is 141.

The Respondent testified that she is usually very good with doing paperwork but said that she was unfamiliar with how to input information on the computer and other officers were assisting her with the On-Line Booking Sheet and the "61"². When those officers brought to her attention that some items were missing from the supporting deposition, she tried to call Santos.

Looking at the supporting deposition [Respondent's Exhibit (RX) A and A1], the Respondent explained that it was signed by a person named [REDACTED]³. She noted that there had been a few blank spaces on the document and she was advised that it would not be accepted because it needed to be complete. She called the store in an effort to speak to [REDACTED]s. She stated, "At the time, I thought I could just get the information from him over the phone and write it down myself." She was unaware at the time that she was not able to add information to a supporting deposition that had already been signed. She again explained, "Unfortunately at the time I did not give it a thought."

When the Respondent called the store, she was told that [REDACTED]s was gone for the day. She explained to the store manager, who had witnessed what happened, that some entries were missing from the report. She asked the manager, whose name she did not get, where the stolen items were taken from and where the items were concealed by [REDACTED]. The manager advised her that the items were removed from a display rack and concealed in a shopping bag [REDACTED] was carrying. The Respondent then added "display rack" and "hand/shopping bag" to the supporting deposition. The Respondent agreed that she was never informed that there were other possible perpetrators involved. Other blank spaces that she filled in, the Respondent explained, simply repeated this basic information.

² Complaint Report

³ As the Respondent noted in her testimony, this person's name is spelled differently in the various documents in the case.

The Respondent noted that [REDACTED] had written on the supporting deposition that the items taken were a Jessica Simpson handbag and what "look[ed] like Guiseppo shoes" and that he had valued the property at \$453 and either 44 or 94 cents. She did not add the items or the value as they were already on the supporting deposition.

The Respondent stated that she specifically asked the manager if she was present when the arrest was made and if she had knowledge of the accuracy of the information she was giving her. The manager told her that she had seen everything.

After the Respondent wrote the information she obtained on the supporting deposition, she faxed the documents to Central Booking or ECAB. She was done at that time. The Respondent stated that she never signed any accusatory instrument or complaint in the case. She never spoke to an assistant district attorney (ADA) on April 11 or 12, 2009. No complaint was ever faxed back to her at the precinct to check for accuracy.

In mid-October, the Respondent was called to the office of ADA Mardirosson, who asked her about the arrest. The Respondent said that she explained to Mardirosson that she was assigned the case, "That's when I took out the supporting deposition and I told her basically the only involvement I had with this was that I had to add this information that was missing." Mardirosson asked why she had done that and the Respondent testified that she answered, "Well because it's supposed to be complete, you know, there can't be any blanks." Mardirosson asked her if she had written it and the Respondent said that she had and, "So I told her if there is a problem, we can get him to do another one. She said, no."

The Respondent testified that Mardirosso got on the telephone, excused herself and left the room. When she returned, the Respondent said, they talked a little bit but Mardirosso never told her that she had done anything wrong. She just told the Respondent that she did not need her anymore. The Respondent said she left all of the original paperwork behind because she no longer needed it and left the office. Two weeks later, the Respondent said she was notified to come in for an official Department interview.

The Respondent stated that she had told Mardirosso exactly what she had added to the document and showed her the different handwriting. The Respondent explained that she believed that [REDACTED] did not receive a DAT because she lied about her name "or something." She never saw the security guard who actually prepared the supporting deposition. She had not been aware that three people had been involved in the shoplifting. She did not believe that she received any overtime in connection with this case nor did she receive any benefit for processing the supporting deposition.

The Respondent added that at the time of this event she had 17 ½ years on the job and had never run into a situation like this. She stated, "I thought what I was doing was getting the right information because I wasn't going to speak to the ADA, so I needed to get the information correct. When you do something maliciously or wrong and there is an intent you are benefitting from it. I in no way benefitted from this at all and I apologize. It was a stupid thing to do. It was a mistake. I wasn't thinking about it. Believe me I would never ever do this again."

When asked if she had run into a similar situation recently, the Respondent recounted that about a week ago, she went to the Filene's Basement store on a trespass

case. Her partner looked at the paperwork and was satisfied and they proceeded to take the arrest. When they got back to the stationhouse, she noticed a discrepancy on the supporting deposition regarding when an arrestee had been served with notice. The arrestee had been served last year and the supporting deposition listed this year. She called the store and asked that the deponent come down to the precinct. A person other than the deponent came down to the precinct and attempted to correct the supporting deposition. The Respondent said she did not permit her to do so. Instead, the person who came down to the store said that she was a witness to the entire incident and she prepared a completely new supporting deposition based on her own observations. The Respondent explained that she would not allow the woman from the store to make even a minor change to the supporting deposition previously signed by someone else.

On cross-examination, the Respondent agreed that she had worked on April 11, 2009, and that she was assigned a shoplifting arrest from Santos. She agreed that she had to review the supporting deposition as part of the arrest process. She agreed that she added information to that supporting deposition. She agreed that the person who signed it was [REDACTED], that she is not [REDACTED], and that [REDACTED]' signature is not her signature.

The Respondent also agreed that before she added the information, she called the DSW Shoe Warehouse and attempted to speak to [REDACTED]. She agreed that she was unable to speak to [REDACTED] and, in fact, never spoke to him. Instead, she spoke to the manager who provided her with the information. She agreed that there were blanks in the supporting deposition. The Respondent stated that she never asked what [REDACTED] saw but asked the manager if she was there and if she observed the incident. She then asked the

manager the exact, specific questions to fill in the blank spaces. The Respondent agreed that she did not ask the manager if she had conducted her own surveillance of the three shoplifters. The Respondent said they only spoke about one person and she did not know there was more than one person involved.

The Respondent agreed that she added the words "display rack" to the supporting deposition. She agreed that she did not have any personal knowledge that [REDACTED] saw [REDACTED] remove items from a display rack because she did not speak to him. The Respondent also agreed that she added "shoes and handbag" to the supporting deposition and that she did not have personal knowledge that [REDACTED] saw [REDACTED] conceal the shoes and handbag in the shopping bag. She denied that she added this information without any knowledge, explaining that she added it after conferring with the manager. She stated, "I just did not add anything just to add it."

The Respondent agreed that the manager never told her that [REDACTED] saw that (the items were taken from a display rack and concealed in a shopping bag) and the Respondent explained again that she did not ask that. The Respondent agreed that she had no personal knowledge of what [REDACTED] saw.

With regard to the portion of the supporting deposition that referred to where the handbag and shoes were recovered, the Respondent agreed that she added the words "hand and shopping bag." Once again the Respondent agreed that she never spoke to [REDACTED] about where he recovered these items.

The Respondent agreed that she spoke with Mardirosso about the supporting deposition but denied that Mardirosso told her that she was not supposed to add "stuff" to the supporting deposition. After hearing the Assistant Department Advocate read back

a portion of her statement at her official Department interview, the Respondent agreed that Mardirosson had told her that she was not supposed to write on the supporting deposition.

When asked if she considered adding a statement to someone else's supporting deposition "no biggie" the Respondent answered, "Absolutely not." When a portion of the interview was read to her, the Respondent agreed that she had said that at the interview. The Respondent went on to testify that she did not believe she had actually said, "no biggie" to the ADA. She said she might have said, "no problem" but that she did not remember exactly.⁴

The Respondent said she recalled telling Mardirosson that she believed [REDACTED] was a "buff." She agreed that at the time she did not think what she did was a problem, stating, "I didn't think I did anything wrong."

On re-direct examination, the Respondent agreed that her immediate response (to Mardirosson) was that she had done nothing wrong and that she could get a new supporting deposition.

With regard to her conversation with the manager, the Respondent said that she had not asked what [REDACTED] done but asked what she had seen. The purpose of this, the Respondent explained, was to get the correct information to fill in the blank spaces.

On re-cross examination, the Respondent agreed that, at the time, she had been a police officer for 17 years. When asked if, at the time, she thought it was wrong to add "stuff" to another person's supporting deposition, the Respondent answered that she had not thought about it.

⁴ In the portion of the official Department interview read into the record, the Respondent said that she had told Mardirosson that she had said, "I'm sorry, no biggie."

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on June 30, 1992. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has pleaded Guilty to adding information to a supporting deposition after the deponent had signed it and failing to make entries in her activity log.

The key charge here has to do with the addition of information to the supporting deposition after it was signed. The Department has recommended a penalty involving the loss of 30 vacation days. The Respondent has asked for a lesser penalty, offering as mitigation the fact that at the time she did this she had no idea that this was wrong, that her efforts were designed to make sure that the report was complete so that would it would be accepted for processing and that she tried to insure that the information she added to the supporting deposition was accurate.

The Respondent tried to get a hold of the deponent to get the missing information from him and make the additions with his knowledge and approval. Unable to reach the deponent, who had gone home for the day, she interviewed the store manager, who said that she was present when the shoplifting occurred. Based on information obtained from the manager, the Respondent filled in several blank spaces on the already signed supporting deposition.

This Court notes the long service and prior unblemished record of the Respondent but it has a difficult time accepting that what the Respondent has offered actually

constitutes mitigating circumstances. It is for instance difficult to accept that a member of this Department could possibly be unaware that a signed supporting deposition cannot be changed except with, at a minimum, the knowledge and consent of the deponent.

What seems more likely is that the Respondent did not think it was a big deal. While we don't know exactly what the Respondent said to Mardirosso, the Respondent herself reported that she told Mardirosso it was "no biggie." This is exactly the attitude and the issue this Department is attempting to address with regard to signed and sworn documents filed with the various district attorneys and the courts.

To be sure, the Respondent did make an effort to insure that the information she added to the supporting deposition was accurate. The Respondent claimed the information was, in fact, accurate while the Department disputes that. This issue was not explored extensively at trial, as it is a collateral issue, however the Court did take into evidence two documents; one from each side, which each party asserts supports its contention. The Respondent has offered into evidence a report from the IAB group investigating the case which says that [REDACTED] was called and said that everything in the supporting deposition was "100% accurate" (RX C). The Department put into evidence a report from the security firm that employs [REDACTED] (Department Exhibit 1), which was completed by [REDACTED] in longhand. Even the Department concedes that his written report is hard to read. However, the Department argues that what can clearly be seen in the report is that there were originally three suspects and the Respondent was not aware of that fact. Additionally, the Court was able to read part of the report and it states that the manager on duty was notified after the three suspects had tried to leave the store and were

escorted back in. The report also indicates that only one person was arrested and the other two were merely escorted out of the store.

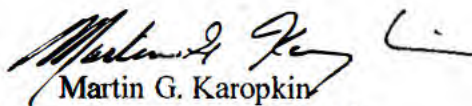
The issue of accuracy, as previously mentioned, is collateral. The Respondent was not charged with providing false information. It must be noted that the Respondent's effort was flawed. By obtaining information from someone (the Respondent did not even record the person's name) who may or may not have viewed the incident, from someone who may or may not have known what the deponent, [REDACTED], actually saw and who was not under oath as [REDACTED] was, the Respondent created the potential for error if not outright falsity.

While the Respondent made much of the fact that she derived no benefit, such as overtime, she did avoid whatever work would have been necessary to handle the matter properly, whether that involved replacing the supporting deposition as she described doing in a recent case, voiding the arrest or taking whatever other action her commanding officer would have required had that supervisor been advised of the problem.

This Court is not unsympathetic to the difficulties inherent in providing accurate information for accusatory instruments in the time-pressured and often hectic arrest to arraignment process. It has recommended reduced penalties where others, such as the assistant district attorney shared some level of responsibility for the inaccuracy, (see Disciplinary Case No. 85574/09 signed June 8, 2010). In this case no one else was involved. The Respondent took it upon herself to fill in the missing information, an action which would probably have gone unnoticed had the criminal charges been disposed of at arraignment, something that very often happens in petit larceny cases.

A penalty involving the loss of 30 vacation days is consistent with other similar cases (see discussion in Disciplinary Case No. 85574/09, *supra*) and is therefore the recommendation of this Court.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner – Trials

APPROVED

JAN 19 2011
RAYMOND W. KELLY
POLICE COMMISSIONER

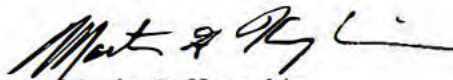
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER NELIDA FLORES
TAX REGISTRY NO. 901552
DISCIPLINARY CASE NO. 86164/10

The Respondent received an overall rating of 4.0 “Highly Competent” on her last three annual performance evaluations. She has been awarded two medals for Excellent Police Duty and one medal for Meritorious Police Duty. [REDACTED]

[REDACTED] She has no prior formal disciplinary record.

For your consideration.


Martin G. Karopkin
Deputy Commissioner [REDACTED] Trials